

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harris Rogers	Team: Squad #07	CCRB Case #: 202206762	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 10/09/2022 9:26 PM, Sunday, 10/09/2022 9:36 PM	Location of Incident: East 179th Street and Jerome Avenue	18 Mo. SOL 4/9/2024	Precinct: 46
Date/Time CV Reported Sun, 10/09/2022 9:47 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 10/09/2022 9:47 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Darian Wesler	31124	965903	046 PCT
2. PO Ednise Sanchezramirez	03549	967683	046 PCT
3. LT Neilrodric Dey	00000	946925	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Ednise Sanchezramirez	Abuse: Police Officer Ednise Sanchezramirez stopped § 87(2)(b)	A . Substantiated
B . PO Darian Wesler	Abuse: Police Officer Darian Wesler stopped § 87(2)(b)	B . Substantiated
C . PO Ednise Sanchezramirez	Force: Police Officer Ednise Sanchezramirez used physical force against § 87(2)(b)	C . Substantiated
D . PO Darian Wesler	Force: Police Officer Darian Wesler used physical force against § 87(2)(b)	D . Substantiated
E . PO Ednise Sanchezramirez	Abuse: Police Officer Ednise Sanchezramirez frisked § 87(2)(b)	E . Substantiated
F . PO Darian Wesler	Abuse: Police Officer Darian Wesler failed to provide § 87(2)(b) with a business card.	F . Unable to Determine
G . PO Ednise Sanchezramirez	Abuse: Police Officer Ednise Sanchezramirez failed to provide § 87(2)(b) with a business card.	G . Substantiated
H . LT Neilrodric Dey	Abuse: Lieutenant Neilrodric Dey did not process § 87(2)(b) complaint regarding PO Darian Wesler and PO Ednise Sanchezramirez.	H . Unable to Determine
§ 87(2)(g)		
§ 87(2)(g)		

Case Summary

The CCRB received the following complaint from § 87(2)(b) on October 9, 2022, via the CCRB's website [BR 1].

On October 9, 2022, at approximately 21:36, § 87(2)(b) was walking eastbound on East 179th Street toward Jerome Avenue in the Bronx when officers in an unmarked police vehicle followed him. Police Officer Ednise Sanchez Ramirez and Police Officer Darian Wesler of the 46th Precinct. attempted to speak to § 87(2)(b). § 87(2)(b) continued to walk towards Jerome Avenue. Upon reaching the corner of Jerome Avenue and East 179th Street, PO Sanchez Ramirez exited the police vehicle and approached § 87(2)(b) [**Allegation A: Abuse of Authority – Stop, Substantiated**]. PO Wesler then parked and exited the police vehicle and approached § 87(2)(b) [**Allegation B: Abuse of Authority – Stop, Substantiated**].

§ 87(2)(b) attempted to back away from the approaching officers. PO Sanchez Ramirez pursued § 87(2)(b) and grabbed § 87(2)(b) by the arm [**Allegation C: Force – Physical Force, Substantiated**]. PO Wesler then grabbed § 87(2)(b) by his arms, holding § 87(2)(b) arms behind his back [**Allegation D: Force – Physical Force, Substantiated**]. PO Sanchez Ramirez then frisked § 87(2)(b) [**Allegation E: Abuse of Authority – Frisk, Substantiated**]. After the frisk, § 87(2)(b) was allowed to leave. PO Wesler did not provide § 87(2)(b) with a business card [**Allegation F: Abuse of Authority – Failure to provide RTKA card, Unable to Determine**]. PO Sanchez Ramirez did not provide § 87(2)(b) with a business card [**Allegation G: Abuse of Authority – Failure to provide RTKA card, Substantiated**].

After being stopped, § 87(2)(b) walked to the 46 Precinct stationhouse, where he spoke with Lieutenant Neilrodric Dey. § 87(2)(b) wished to complain about the conduct of PO Sanchez Ramirez and PO Wesler. Lt. Dey heard § 87(2)(b) complaint but allegedly did not process his complaint [**Allegation H: Abuse of Authority: Refusal to process civilian complaint, Unable to Determine**].

The CCRB is in possession of TARU footage of the officers following § 87(2)(b) being [BR 2], the officers appearing to speak to § 87(2)(b) [BR 3], and the officers stopping and frisking § 87(2)(b) [BR 4]. The CCRB is also in possession of stationhouse footage of § 87(2)(b) speaking with Lt. Dey [BR 5]. § 87(2)(g), § 87(4-b)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ednise Sanchez Ramirez stopped § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Darian Wesler stopped § 87(2)(b).

Allegation (E) Abuse of Authority: Police Officer Ednise Sanchez Ramirez frisked § 87(2)(b).

In his interview with the CCRB [BR 6], § 87(2)(b) stated that on October 9, 2022, he was returning from his job at the post office and walking home. At approximately 21:30, § 87(2)(b) exited the Tremont Avenue station and walked down East 179th Street toward Jerome Avenue. As he was walking, § 87(2)(b) felt that he was being watched, and turned to his left, where he noticed a black sedan with tinted windows driving along East 179th Street. The vehicle's windows were rolled down, and § 87(2)(b) saw two occupants staring at him. PO Sanchez Ramirez asked him where he was going. § 87(2)(b) responded that he had just finished his job and continued walking. § 87(2)(b) did

not yet realize that the occupants of the vehicle were police officers.

East 179th Street is a one-way street, and when PO Sanchez-Ramirez first spoke to him, the police vehicle was driving in the same direction as traffic. § 87(2)(b) was walking against the flow of traffic, in the opposite direction. Shortly after first speaking with the officers, and after walking further down East 179th Street, § 87(2)(b) saw the vehicle driving opposite the direction of East 179th Street in his direction. Prior to reaching the intersection of East 179th Street and Walton Avenue, § 87(2)(b) saw that the occupants of the vehicles were wearing NYPD uniforms. At the intersection of East 179th Street and Walton Avenue, PO Sanchez Ramirez again asked § 87(2)(b) where he was going. § 87(2)(b) replied that he had just finished work and that he was going home to watch the HBO show House of Dragons.

§ 87(2)(b) continued to walk at a regular and steady pace toward Jerome Avenue. While still on East 179th Street, between Walton Avenue and Jerome Avenue, PO Sanchez Ramirez asked § 87(2)(b) where he worked. § 87(2)(b) said that he worked for the post office. PO Sanchez Ramirez then asked § 87(2)(b) if he was going to stop, prompting § 87(2)(b) to tell the officer that he was not going to. § 87(2)(b) also asked why he would stop. § 87(2)(b) then turned right and began walking northbound on Jerome Avenue, briefly losing sight of the vehicle.

§ 87(2)(b) then heard a car door open, turned around, and saw PO Sanchez Ramirez running towards him. § 87(2)(b) backed away from PO Sanchez Ramirez, due to the surprise of being approached. § 87(2)(b) also stuck out his hands, with outstretched palms, towards PO Sanchez Ramirez. PO Sanchez Ramirez then grabbed § 87(2)(b) by his jacket. § 87(2)(b) attempted to push PO Sanchez Ramirez off him. § 87(2)(b) explained he was stepping away, rather than pushing PO Sanchez Ramirez. PO Sanchez Ramirez then grabbed him by his arms, pushing him back towards a nearby gate. § 87(2)(b) told PO Sanchez Ramirez to get off him, and that he did not consent.

PO Wesler then approached and grabbed § 87(2)(b) by his lower arms and forced § 87(2)(b) arms behind his back. § 87(2)(b) was not handcuffed. While being restrained by PO Wesler, an officer or both officers then tapped his pockets, including his rear and front pants pockets, hoodie, and jacket pockets. § 87(2)(b) was unsure which officer did this. § 87(2)(b) told the officers he did not consent several times. After frisking § 87(2)(b) and finding nothing, PO Wesler pushed § 87(2)(b) in his upper chest using both of his hands, causing § 87(2)(b) to stumble backwards, and nearly fall into a nearby gate. Both officers then left the scene.

The CCRB is in possession of TARU footage of the incident. The first TARU camera depicts northeast and southeast corner at the intersection of East 179th Street and Walton Avenue, with the frame positioned east-facing on East 179th Street [BR 2]. At 40:01 on that footage, a black four-door sedan carrying PO Wesler and PO Sanchez Ramirez turns and drives east-bound on East 179th Street.

At 40:35, § 87(2)(b) is visible walking west bound on East 179th Street, opposite the flow of traffic, seemingly headed towards the intersection of Walton Avenue and East 170th Street. At 40:41, the black sedan carrying PO Wesler and PO Sanchez Ramirez reappears, driving opposite the flow of traffic, west bound on East 179th Street. At 40:47, the black SUV slows down, and pulls alongside § 87(2)(b) who is walking on the sidewalk. The vehicle appears to match § 87(2)(b) walking speed until § 87(2)(b) and the vehicle leave the video frame at approximately 40:55. § 87(2)(b) appears to be wearing dark colored clothing and appears to have both of his hands inside of his side jacket pockets.

An additional TARU camera depicts the northwest corner of East 179th Street and Walton Avenue [BR 3]. At approximately 41:01, § 87(2)(b) enters the frame of the video, followed closely by the slow-moving four-door sedan, which is driving parallel to § 87(2)(b) as he walks on the sidewalk. § 87(2)(b) body is at different points angled towards the SUV, and he appears to be speaking in the direction of the vehicle. § 87(2)(b) and the video pass out of the frame of the video at 41:12, having entered the block of East 179th Street between Walton Avenue and Jerome Avenue. § 87(2)(b) hands are inside of his jacket pockets.

The last TARU camera captured § 87(2)(b) being stopped by PO Sanchez Ramirez and PO Wesler [BR 4]. The camera depicts the northeast corner of East 179th Street and Jerome Avenue. At 41:48, the headlights of the unmarked black sedan illuminate PO Sanchez Ramirez and § 87(2)(b). PO Sanchez Ramirez is briefly visible grabbing the sleeve of § 87(2)(b) jacket. The headlights then move up the strip, preventing a clear view of PO Sanchez Ramirez and § 87(2)(b) who are cloaked in darkness. At 41:55, § 87(2)(b) began backing away from PO Sanchez Ramirez. At 41:58, PO Sanchez Ramirez walks after § 87(2)(b) appearing to hold him near his upper chest area. PO Wesler then approached PO Sanchez Ramirez and § 87(2)(b). PO Wesler steps behind § 87(2)(b) and uses both of his hands to grab § 87(2)(b) by his arms, pulling § 87(2)(b) arms behind his back. PO Sanchez Ramirez then runs her hands along the exterior of § 87(2)(b) pants and along the front of his jacket front jacket pockets. It is not explicitly clear from the footage whether PO Sanchez Ramirez entered § 87(2)(b) pockets. PO Wesler does not appear to participate in the frisk, although the positioning of his hands at the time of the frisk is not clear from the footage. At 42:09, PO Wesler releases § 87(2)(b) who swings his arm away from PO Wesler. § 87(2)(b) then turns and walks northbound up Jerome Avenue. PO Wesler and PO Sanchez Ramirez return to their vehicle.

In her statement to the CCRB [BR 7], PO Sanchez Ramirez initially recalled that she and PO Wesler first saw § 87(2)(b) walking westbound on East 179th Street between Walton Avenue and Jerome Avenue. § 87(2)(b) was walking by himself in the same direction that the officers were driving. PO Sanchez Ramirez and PO Wesler noticed § 87(2)(b) because he was the only one on the street at the time. As soon as she noticed § 87(2)(b) PO Sanchez Ramirez observed a large L-shaped object in § 87(2)(b) left pocket. PO Sanchez Ramirez could not recall which pocket the object was in, only that it was on the left side of § 87(2)(b) body. PO Sanchez Ramirez characterized the object in § 87(2)(b) pocket as looking almost identical to what a firearm looks like inside of a pocket, an assessment that PO Sanchez Ramirez made based on previous arrests for concealed firearms. PO Sanchez Ramirez also stated that the object also appeared to be heavy, as § 87(2)(b) pocket was swinging as he walked. At the time PO Sanchez Ramirez observed the object, her vehicle was approximately a car-length away from § 87(2)(b).

PO Sanchez Ramirez then attempted to speak with § 87(2)(b) from the vehicle, asking something along the lines of “how are you?” and “are you ok?” § 87(2)(b) turned, made eye contact, and then turned his face away. PO Sanchez Ramirez interpreted § 87(2)(b) turning his face as an attempt to conceal his face, and noted that, in her experience, some people will avoid eye contact with officers because they believe that will discourage the officers from speaking with them. § 87(2)(b) ignored her. PO Sanchez Ramirez could not recall if she instructed § 87(2)(b) to stop.

Less than a minute after first sighting § 87(2)(b) PO Sanchez Ramirez observed § 87(2)(b) “dip” behind a vehicle parked between himself and the police vehicle. That vehicle was parked somewhere on East 179th street, within one block of Jerome Avenue. § 87(2)(b) was completely out of view behind the vehicle. PO Sanchez Ramirez could not recall exactly how long § 87(2)(b) was behind the vehicle but stated that it was less than a minute. After § 87(2)(b) emerged from behind the vehicle, the imprint of the L-shaped object was no longer visible and the pocket was no longer swinging, as though the weight had been removed from the pocket.

§ 87(2)(b) then turned onto Jerome Avenue, heading north. She and PO Wesler discussed that they believed § 87(2)(b) to be an individual that had previously fled from the two officers while observing him walking on East 179th Street. Several days prior to October 9, 2022, she and PO Wesler observed § 87(2)(b) walking on Burnside Avenue with “something” on his waistband. § 87(2)(b) was also holding his waistband on his right side, as though to prevent something from falling. At some point, PO Sanchez Ramirez made eye contact with § 87(2)(b). As PO Sanchez Ramirez and PO Wesler were making a U-turn to follow § 87(2)(b), § 87(2)(b) ran away from their vehicle. PO Wesler and PO Sanchez Ramirez opted not to pursue § 87(2)(b) due to heavy traffic in the area.

After determining that § 87(2)(b) was the individual who had previously fled from them, and after § 87(2)(b) turned onto Jerome Avenue, PO Sanchez Ramirez and PO Wesler exited the vehicle and approached § 87(2)(b). This was a joint decision. PO Sanchez Ramirez could not recall if she gave § 87(2)(b) any instructions to stop. The rapid nature of the stop was the reason that she did not activate her BWC.

Once out of the vehicle, PO Wesler and PO Sanchez Ramirez approached § 87(2)(b) who PO Sanchez Ramirez described as “irate” and “combative.” This behavior led her to believe that § 87(2)(b) might strike the officers. PO Wesler then held § 87(2)(b) and PO Sanchez Ramirez frisked him. The frisk did not yield any firearms. PO Wesler offered to provide § 87(2)(b) with his business card but, § 87(2)(b) responded saying, “Fuck you cracker.” PO Sanchez Ramirez never offered § 87(2)(b) a business card because both officers were not required to offer a business card. Additionally, since § 87(2)(b) declined PO Wesler’s card, she did not offer her card.

After PO Sanchez Ramirez was allowed to independently recall the incident, she was shown TARU footage in possession of the CCRB. PO Sanchez Ramirez clarified that § 87(2)(b) dipping behind the vehicle is not captured on TARU footage, and that § 87(2)(b) dipped behind a vehicle that was parked somewhere between Walton Avenue and Jerome Avenue on East 179th Street. PO Sanchez Ramirez could not explain specifically why she and PO Wesler performed a U-turn to drive in the opposite direction of traffic, but assumed based on the sequence of events shown in the TARU footage that she and PO Wesler must have noticed the bulge while driving on East 179th Street. PO Sanchez Ramirez stated that the officers must have noticed § 87(2)(b) prior to the intersection of Walton Avenue and East 179th Street, but that they had not necessarily observed the L-shaped bulge at that point. Despite her previous statement that the officers had noticed the bulge almost immediately after noticing § 87(2)(b) after reviewing the footage, PO Sanchez Ramirez stated that the officers must have noticed the bulge while driving west on East 179th Street, between Walton Avenue and Jerome Avenue. PO Sanchez Ramirez could not recall why the officers made a U-turn on East 179th Street to drive westbound if they had not yet noticed the bulge.

PO Wesler’s testimony to the CCRB generally mirrored PO Sanchez Ramirez’s statement [BR 8]. § 87(2)(b) was under no obligation to stop while the officers were asking him questions about how he was doing. PO Wesler also recalled § 87(2)(b) ducking behind a vehicle approximately ten to twenty seconds after the officers first began speaking to him. The vehicle was parked on East 179th Street, and closer to Jerome Avenue. § 87(2)(b) was behind the vehicle, completely out of sight, for a couple of seconds. PO Wesler, like PO Sanchez Ramirez, interpreted this action as an attempt by § 87(2)(b) to conceal himself from the officers. After § 87(2)(b) emerged from behind the vehicle, the L-shaped object no longer appeared on his person. PO Wesler and PO Sanchez Ramirez had a discussion, during which they concluded that § 87(2)(b) must have concealed the object somewhere else on himself.

After § 87(2)(b) continued walking, after ducking behind the vehicle, PO Wesler and PO Sanchez Ramirez recognized him as an individual who had run from their vehicle approximately four to seven days prior where PO Wesler had observed a bulge in the waistband of § 87(2)(b) pants, but did not pursue him because of heavy traffic in the area and because PO Wesler did not consider the presence of a bulge alone enough to warrant further investigation or pursuit.

§ 87(2)(b) quickened his walking pace upon reaching the northeast corner of Jerome Avenue and East 179th Street. Based on this and because of the previous interaction, PO Wesler believed that § 87(2)(b) might run from the officers.

Fifteen to twenty seconds later, PO Wesler and PO Sanchez Ramirez exited their vehicle, stopped § 87(2)(b) and conducted a frisk. PO Wesler stated that he and PO Sanchez Ramirez did not canvass the area around the vehicle which § 87(2)(b) ducked behind for the object, after conducting the fruitless frisk. As he and PO Sanchez Ramirez were returning to their vehicle, PO Wesler offered his business card, to which § 87(2)(b) responded, “fuck you, cracker!” PO Wesler did not activate his BWC due to the rapid nature of the incident, and because § 87(2)(b) was “highly combative” necessitating that the officers restrain § 87(2)(b) and preventing them from activating their cameras. Upon reviewing TARU footage of the incident, PO Wesler did not recall, and could not explain, why his vehicle made a U-turn to drive opposite traffic on East 179 Street.

According to Patrol Guide Procedure 212-11 [BR 9], which deals with the necessary conditions that must be met before police officers can initiate an investigative encounter. A Terry Stop, specifically one classified as a Level 3 encounter, is any encounter between a civilian and a uniformed member of service in which a reasonable person would not feel free to disregard the officer and walk away. A stop of this nature can be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor.

In *People v. Jones* 164 A.D.3d 1363, the court concluded that when a defendant had a nondescript bulge in his right jacket pocket, was leaning to the right side, and walked away from the officers without complying with the officers’ requests, this did not support a reasonable suspicion of a particularized criminal action. A bulging jacket is hardly indicative of criminality. As [the Court of Appeals has] recognized, a pocket bulge, unlike a waistband bulge ‘could be any number of innocuous objects’ and an individual has a right to be let alone and refuse to respond to police inquiry. [BR 16]

Patrol Guide procedure 212-11 also establishes the necessary conditions for the initiation of a frisk. A frisk is authorized when the member of service reasonably suspects the person is armed and dangerous.

According to PO Sanchez Ramirez and PO Wesler, § 87(2)(b) was stopped and frisked due to their shared observation of an L-shaped bulge on the left side of § 87(2)(b) body. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to PO Wesler, that observation was made from their vehicle, which was positioned 10 to 12 feet away from § 87(2)(b). It was nighttime. § 87(2)(b) testified that he was wearing dark clothing, a description that is confirmed by TARU footage, which also shows that while walking on East 179 Street, § 87(2)(b) had his hands in his jacket pockets. East 179th Street is lined with parked vehicles, § 87(2)(g)

it is recommended that Allegations A, B, and E be closed as Substantiated.

Allegation (C) Force: Police Officer Ednise Sanchez Ramirez used physical force against

§ 87(2)(b)

Allegation (D) Force: Police Officer Darian Wesler used physical force against

§ 87(2)(b)

In his interview [BR 6], § 87(2)(b) described backing away from PO Sanchez Ramirez as she approached him, due to the surprise of being suddenly confronted. § 87(2)(b) also recalled that PO Sanchez Ramirez told him “Don’t run away from me” as she approached. PO Sanchez Ramirez then grabbed him by his jacket, after which § 87(2)(b) continued to step away from PO Sanchez Ramirez. PO Sanchez Ramirez then grabbed him by his arms, pushing him back towards a nearby gate. PO Wesler then approached and grabbed § 87(2)(b) by his lower arms and forced § 87(2)(b) arms behind his back. After frisking § 87(2)(b) PO Wesler pushed § 87(2)(b) in his upper chest using both of his hands, causing § 87(2)(b) to stumble backwards, and nearly fall into a nearby gate.

The last TARU camera captured § 87(2)(b) being stopped by PO Sanchez Ramirez and PO Wesler [BR 4]. The camera depicts the northeast corner of East 179th Street and Jerome Avenue. At 41:50, § 87(2)(b) walks backwards away from PO Sanchez Ramirez. PO Sanchez Ramirez is briefly visible grabbing the sleeve of § 87(2)(b) jacket. § 87(2)(b) and PO Sanchez Ramirez appear to be speaking to one another. PO Sanchez Ramirez follows § 87(2)(b) and places her right hand on his shoulder. § 87(2)(b) hands are in his jacket pockets. At 41:58, PO Sanchez Ramirez walks after § 87(2)(b) appearing to hold him near his upper chest area. PO Wesler then approaches PO Sanchez Ramirez and § 87(2)(b) PO Wesler steps behind § 87(2)(b) and uses both of his hands to grab § 87(2)(b) by his arms, pulling § 87(2)(b) arms behind his back.

In conducting the stop of § 87(2)(b) PO Sanchez Ramirez and PO Wesler utilized physical force. In her interview, PO Sanchez Ramirez stated that § 87(2)(b) was acting irate and combative as she approached him after exiting her vehicle, and that this behavior led her to believe that § 87(2)(b) may have been about to strike either her or PO Wesler. After being shown TARU footage of the stop, PO Sanchez Ramirez explained that § 87(2)(b) was attempting to walk away from her, and that she believed he may have been about to flee. PO Sanchez Ramirez also described § 87(2)(b) as flailing his arms as she attempted to grab him. Finally, PO Sanchez Ramirez stated that she told § 87(2)(b) to stop as she approached him in the TARU footage.

In his interview, PO Wesler also recalled that § 87(2)(b) was flailing his arms as the officers

approached him, and that he restrained § 87(2)(b) arms to prevent § 87(2)(b) from striking either himself or PO Sanchez Ramirez.

According to Patrol Guide Procedure 221-01 [BR 10] entitled Force Guidelines, force may be used when it is reasonable to ensure the safety of members of service...or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application of or use of force must be reasonable under the circumstances.

According to Patrol Guide Procedure 212-11 [BR 9], a Level 3 encounter, any encounter between a civilian and a uniformed member of service in which a reasonable person would not feel free to disregard the officer and walk away, can be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor.

The TARU footage shows that PO Sanchez Ramirez grabbed § 87(2)(b) placed her hand on his shoulder, and held him near his upper chest. PO Wesler grabbed § 87(2)(b) § 87(2)(g)

§ 87(2)(g) it is recommended that Allegations C and D be closed as Substantiated.

Allegation (F) Abuse of Authority: Police Officer Darian Wesler failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Ednise Sanchez Ramirez failed to provide § 87(2)(b) with a business card.

In his interview [BR 6], § 87(2)(b) stated that he never received a business card from either officer.

According to PO Wesler, he offered § 87(2)(b) a business card after PO Sanchez Ramirez had completed her frisk. § 87(2)(b) allegedly stated, "fuck you, cracker!" in response. PO Sanchez Ramirez also recalled § 87(2)(b) telling PO Wesler "fuck you, cracker!" PO Sanchez Ramirez never offered § 87(2)(b) a business card because she believed that only one officer needed to offer a business card, and did not need to offer one because § 87(2)(b) had already refused a business card from PO Wesler.

§ 87(2)(g) it is recommended that Allegation F be closed as Unable to Determine.

According to Administrative Guide 304-11 [BR 11], officers are required to offer a business card after conducting a frisk that does not result in a summons being issued or an arrest being made.

According to her own testimony [BR 7], PO Sanchez Ramirez did not offer a business card to § 87(2)(b) § 87(2)(g) it is recommended that Allegation G be closed as Substantiated.

Allegation (H) Abuse of Authority: Lieutenant Neilrodric Dey did not process § 87(2)(b) complaint regarding PO Darian Wesler and PO Ednise Sanchez Ramirez.

After being stopped, § 87(2)(b) walked immediately to the nearby 46 Precinct stationhouse.

Stationhouse footage confirms that § 87(2)(b) entered at 21:42 [BR 5]. § 87(2)(b) stated that he spoke with Lieutenant Dey at the stationhouse and requested to file a complaint about the stop. Lt. Dey repeatedly told him that there was nothing he could do, because the officers involved had not entered § 87(2)(b) pockets and hadn't broken any laws as a result. Lt. Dey also told § 87(2)(b) that the officers had seized 65 firearms, leading § 87(2)(b) to believe that Lt. Dey knew the officers who had stopped him. Additionally, Lt. Dey appeared concerned after § 87(2)(b) told him that PO Wesler had pushed him during the incident, and repeatedly told § 87(2)(b) that the incident would not happen again. Lt. Dey never prepared a complaint for § 87(2)(b) and did not provide him with a complaint form. § 87(2)(b) left the stationhouse and returned home.

Stationhouse footage confirms that § 87(2)(b) spoke with Lieutenant Neilrodric Dey for approximately 15 minutes, beginning at 24:52. During their conversation, § 87(2)(b) frequently gesticulates, appears to be talking quickly, and occasionally appears to act out his interaction with the officers, mimicking his physical movements. Lt. Dey speaks at length with § 87(2)(b) leaves the stationhouse after shaking Lt. Dey's hand at 39:40.

In his interview with the CCRB [BR 12], Lt. Dey stated that he and § 87(2)(b) spoke for several minutes, and that § 87(2)(b) wanted an explanation from Lt. Dey about the conduct of some officers from the 46 Precinct. § 87(2)(b) told Lt. Dey that, prior to his arriving at the stationhouse, he had been followed by two officers while walking home from work, and that these officers had followed him on more than one occasion. § 87(2)(b) also told Lt. Dey that the officers exited their vehicle to speak with him. Lt. Dey stated that § 87(2)(b) did not provide any additional details about his interaction with the two officers and did not believe that § 87(2)(b) ever described being frisked or physically contacted by the officers. Lt. Dey did not believe that the description provided to him of the officer's conduct amounted to a stop, but characterized the interaction as a routine, innocuous conversation between officers and a member of the public.

According to Lt. Dey, § 87(2)(b) never requested to file a complaint about the officers. If § 87(2)(b) had requested to file a complaint, he would have provided him with a complaint form. When asked if he believed that, based on the individual's description of events, it was necessary to file a complaint on § 87(2)(b) behalf, or to offer a complaint form as an option, Lt. Dey reiterated that if § 87(2)(b) had requested a complaint form, he would have provided one.

§ 87(2)(g)

_____ it is recommended that Allegation H be closed as Unable to Determine.

§ 87(2)(g), § 87(4-b) _____

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Police Officer Ednise Sanchez Ramirez has been a member-of-service for 4 years and has been involved in one additional CCRB complaint and one allegation, which is currently pending investigation [BR 13].
- Police Officer Darian Wesler has been a member-of-service for 4 years and has been involved in 5 additional CCRB complaints and 9 additional allegations [BR 14]. Case number #201810817 involved allegations of Force – Physical Force and was closed pending litigation. All other allegations are pending investigation.
- Lieutenant Neilrodric Dey has been a member-of-service for 14 years and has been the subject of 3 additional CCRB complaints and 3 additional allegations, one of which was substantiated [BR 15]. Case number #201010686 involved a substantiated allegation of Abuse of Authority: (Question) against Lt. Dey. The board recommended Command Discipline and the NYPD imposed Instructions.

Mediation and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator: James Harris Rogers
Signature

Investigator Harris Rogers
Print Title & Name

04/19/2023
Date

Manager Vanessa Rosen
Squad Leader:
Signature

October 20, 2023

Print Title & Name

Date

Reviewer:
Signature

Print Title & Name

Date

